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CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE COMPANY VS BARKER	MOTION TO COMPEL DEPOSITION OF ORANGE COAST TITLE COMPANY'S PERSON MOST QUALIFIED AND PRODUCTION OF DOCUMENTS

Moving party: Defendant/Cross-Complainant Janice Barker, Special Administrator of the Estate of Michael Barker, Deceased

Responding party: Plaintiff/Cross-Defendant Orange Coast Title Company of Southern California

See ruling below.

2.

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Tentative Ruling:

Moving party: Defendant/Cross-Complainant Janice Barker, Special Administrator of the Estate of Michael Barker, Deceased

Responding party: Plaintiff/Cross-Defendant Real Advantage Title Insurance Company

At the May 29, 2026, hearing, the Court continued the hearing to June 26, 2026, to allow Plaintiffs the opportunity to file a response to Barker's consolidated reply. In accordance with the Court order, on June 18, 2026, Plaintiffs filed their consolidated supplemental opposition.

Plaintiffs' consolidated supplemental opposition addresses new matters introduced in Barker's consolidated reply regarding four categories of documents. As a recap, in the consolidated reply filed by Barker, she raised new issues pertaining to certain documents which Barker learned about subsequent to the filing of the instant motions and before the date of the hearing. Barker pointed out that Mike Marconi, the president of OCTSC and RATIC Board member, during his deposition on May 19, 2026, identified four categories of documents, which Barker contends are "highly relevant" and directly responsive to Requests Nos. 21 and 22 placed at issue in the instant motions (any documents or communications relating to any agreement allocating money, responsibility, liability, or damages of RATIC or OCTSC or OCT related to

settlement or Bob's lawsuit). (Manvitz Reply Decl., Ex. 1.) The purportedly "highly relevant" documents identified by Marconi are described as follows:

- (1) A 2022 Securities Purchase Agreement listing Bob's litigation and allocating liability to the seller (i.e. the RATIC Board members)
- (2) RATIC Board Minutes allocating liability for the Bob's Litigation to RATIC
- (3) Accounting records summarily showing who paid for attorneys' fees claimed as damages;
- (4) Documents showing what each Plaintiff paid for the settlement amount claimed as damages.

Barker argued that these documents are relevant to show who paid money for the damages (if any) including the attorneys' fees Plaintiffs allegedly paid and that this issue was previously before the Court on Barker's motion to compel Plaintiffs to comply with Request for Production Nos. 72-74 (all documents relating to damages and accounting record relating to settlement).

Plaintiffs argue that, as to the four specific categories of documents mentioned in Barker's consolidated reply, Barker must show good cause for production and cannot rely on past ruling on Request for Production. As to the first two categories, they point out that Marconi's testimony does not show that the documents are relevant. For example, Plaintiffs argue that the Security Purchase Agreement had nothing to do with how each Plaintiff allocated liability for settlement with Bob as Marconi merely explained that the Security Purchase Agreement was entered as part of the sale of OCH to Acrisure and, as part of due diligence for the sale, the parties to the transaction were obligated to disclose "bucket" of litigation that the parties were involved in to identify their respective liabilities. (Declaration of Lee K. Fink, Ex. A [J. Marconi Depo., 20:18-25; 22:4-7, 13-15, 39:7-13].) Plaintiffs otherwise argue that the agreement is confidential. Furthermore, the Fink declaration also states Plaintiffs' counsel reviewed all of RATIC's Board minutes, and none of the minutes reflect any agreement for RATIC to pay for the settlement or even reference the Bobs litigation. (Fink Decl., ¶ 6.)

As Plaintiffs argue, as to the first two categories of documents, the issue of relevancy is not properly before the Court in the context of the instant motions. Barker has decided to belatedly inject demands for specific documents on the assertion they are covered by productions which the Court has previously ordered, whereas it is unclear whether the previous Requests for production were reasonably particularized to be inclusive of these documents. Therefore, as Plaintiffs note in their supplemental opposition, good cause for the production of these documents must be independently shown. Therefore, any contentions raised by Barker in seeking production of the first two categories of documents identified by Marconi's testimony should be disregarded and are denied.

As to the remaining two categories of documents pertaining to records of attorneys' fees incurred and paid by Plaintiffs, Plaintiffs assert that they have already agreed to produce the documents and have produced the record of the entire \$10.5

million settlement payment from RATIC to Bobs. (Fink Decl., ¶ 7.) On that basis, Plaintiffs argue that the demand for these documents is moot.

Most critically as Plaintiffs point out, Barker's attempt to belatedly inject demands for the newly-mentioned four categories of documents in the context of the instant motion is time-barred. A motion to compel answers to deposition must have been brought 60 days of the completion of the record of the PMK depositions. (Code Civ. Proc., § 2025.480(b).) Because these demands are now being made past the time limit, it is unclear whether Barker may seek production under these motions.

In light of Plaintiffs' arguments in its consolidated supplemental opposition, the Courts previous tentative is amended only to the extent the tentative was to grant the motion as to these four categories of documents. Otherwise, the Court's original Tentative remains unchanged.

For Convenience the Court has included its prior Tentative below:

In 2018, non-party BOBS LLC ("BOBS") loaned \$27 million to Sunniva Production Campus, LLC ("Sunniva"), a company owned and/or controlled by Defendant Michael Barker ("Barker"), to fund construction of a cannabis facility on real property in Cathedral City (the "Property"). Plaintiff Orange Coast Title Company of Southern California ("OCTSC") provided escrow and title services for the loan, and BOBS required a lender's policy of title insurance through Plaintiff Real Advantage Title Insurance Company ("RATIC") ("OCTSC" and "RATIC" collectively "Plaintiffs").

To induce Plaintiffs to issue the policy, Barker executed an Indemnity Agreement in 2018, both as a representative of Sunniva and in his individual capacity ("2018 Indemnity Agreement"). In 2019, BOBS agreed to loan Sunniva an additional \$6 million, and Barker executed a second Indemnity Agreement ("2019 Indemnity Agreement"). Under both agreements, Barker agreed to indemnify, defend, and hold Plaintiffs harmless from any mechanic's lien claim to which the Title Policy applied.

After Sunniva stopped paying its contractors and Orr Builders recorded a \$9.9 million mechanic's lien against the Property, BOBS foreclosed on the Property and, on March 3, 2021, sued Plaintiffs in *BOBS LLC v. Orange Coast Title Company of Southern California, et al.* (Case No. CVPS2101103) (the "BOBS Action") for closing escrow contrary to its escrow instructions. On November 15, 2023, the jury returned a verdict in favor of BOBS, finding OCTSC and RATIC liable for breach of contract and negligence. The parties thereafter entered into a Settlement Agreement whereby OCTSC and RATIC agreed to pay BOBS \$10.5 million.

On June 20, 2023, Plaintiffs filed the Complaint against Barker alleging a single cause of action for breach of contract—2019 Indemnity Agreement. On September 13, 2024, Barker filed the operative First Amended Cross-Complaint

(“FACC”), asserting causes of action for (1) breach of contract; (2) negligence; (3) breach of fiduciary duty; and (4) declaratory relief.

On December 17, 2025, Barker served Second Amended Notices of Deposition of OCTSC’s and RATIC’s Persons Most Qualified (“PMQ”), scheduling the depositions for January 12, 2026, and January 14, 2026, respectively. (Manvitz Decl. ¶ 13, Exs. 8–9.) The notices designated topics including communications concerning the escrow and title insurance for the BOBS loan (Topics 1, 2); OCTSC’s policies and procedures relating to title insurance (Topic 3); OCTSC’s procedures, policies, and practices relating to escrow and escrow closing (Topic 5); the escrow instructions and escrow closing related to the BOBS loan (Topic 6); the basis for Plaintiffs’ indemnity claims (Topic 12); Plaintiffs’ decision to enter into the Settlement Agreement with BOBS (Topic 16); and Plaintiffs’ damages for Barker’s alleged breach of the Indemnity Agreement (Topic 17). The notices were accompanied by Document Requests, including No. 21 (documents and communications relating to any agreement allocating money, responsibility, liability, or damages of RATIC and/or OCTSC related to the Settlement Agreement and/or BOBS Action); No. 22 (documents and communications relating to the allocation of money, responsibility, liability, or damages related to the Settlement Agreement and/or BOBS Action); No. 24 (communications with the California Department of Insurance [“DOI”] regarding the Settlement Agreement and/or BOBS Action); and No. 26 (communications with the DOI regarding the Administrative Services Agreement between Plaintiffs).

Plaintiffs designated **Kent Schmeackle** as PMQ for both entities. Schmeackle appeared as PMQ designee for OCTSC on January 12, 2026, and for RATIC on January 14, 2026. (Manvitz Decl. ¶¶ 14, 18.) Plaintiffs explained that Schmeackle had served as Plaintiffs’ PMQ in the BOBS Action and that other potentially knowledgeable individuals were unavailable: Bill Burding, RATIC’s general counsel and a member of RATIC’s Board of Directors, was retired and ill; John Wiley, an underwriter on the BOBS transaction and a RATIC board member, had passed away; David Schumacher, OCTSC’s Vice President and Senior Underwriter and Claims Officer, had resigned; Yvonne Collard, the lead escrow officer on the transaction, had resigned to pursue other ventures; and Alma Rushing, who supervised OCTSC’s escrow departments, was on medical leave. (Fink Decl. ¶ 3.) At deposition, Plaintiffs’ in-house counsel and the designee himself identified Mike Marconi (President and COO of OCTSC and a RATIC Board member), John Marconi, Rich Macaluso (CEO of RATIC and Co-CEO of OCTSC), and Bill Burding as the executives knowledgeable about the disputed topics. (Manvitz Decl. ¶ 9, Ex. 4 [Schmeackle Depo.] at 26:8–22, 38:12–40:3, 54:14–55:11; Ex. 10 [Hernandez Depo.] at 19:4–21, 31:24–32:12, 78:24–79:4.) Plaintiffs declined to designate any of them and moved to quash the depositions of Marconi and Macaluso. On May 6, 2026, the Court denied Plaintiffs’ motion to quash the deposition of Mike Marconi, and Marconi was deposed on May 19, 2026. (Manvitz Suppl. Decl. ¶ 3, Ex. 1.)

On February 10, 2026, the Court granted Barker's motion to compel further responses to his third set of Requests for Production of Documents ("RFPs"), ordering Plaintiffs to provide further verified responses, production, and a privilege log within 30 days as to RFP Nos. 70–88—categories addressing reinsurance, underwriting, settlement negotiations, communications regarding alleged damages, and RATIC's analysis of potential liability and loss reserves. The Court further directed: "To the extent Barker seeks to compel further testimony from OCTSC's PMQ, Barker must meet and confer and, if necessary, file an appropriate motion seeking to do so. (C.C.P., § 2025.480; Cal. Rules of Court, rule 3.1345.)" (Manvitz Decl. ¶ 12, Ex. 6.)

Barker argues that Plaintiffs failed to satisfy their duty under CCP § 2025.230 to produce a witness "most qualified" and adequately prepared on the noticed topics, and contends that Plaintiffs' designee, **Kent Schmeeckle**, lacked meaningful knowledge on the topics most central to the indemnity dispute. As to OCTSC, Barker asserts a qualified witness must be produced on Topics 1, 2, 3, 5, and 6 (OCTSC's escrow policies, practices, and handling of the BOBS escrow), Topic 12 (the basis for Plaintiffs' indemnity claims), Topic 16 (the decision to enter the \$10.5 million settlement), and Topic 17 (each Plaintiff's damages, including allocation of the settlement payment between RATIC and OCTSC). As to RATIC, Barker seeks a qualified witness on Topics 12, 16, and 17 only. Barker further argues that Document Requests Nos. 21, 22, 24, and 26—covering allocation of the settlement payment, communications with the DOI about the BOBS settlement, and communications about the inter-entity Administrative Services Agreement—concern the same subject matter the Court already ordered produced in its February 10, 2026 order. Barker also seeks monetary sanctions of \$39,700 per motion, and evidentiary sanctions precluding Plaintiffs from offering the \$10.5 million payment as damages at trial.

In opposition, Plaintiffs argue the motions should be denied as procedurally and substantively defective. Procedurally, Plaintiffs contend the motions lack a separate statement under CRC Rule 3.1345. Substantively, Plaintiffs argue that CCP § 2025.230 requires the "most qualified" witness, not the most knowledgeable, and that **Schmeeckle** was the appropriate designee given that more knowledgeable individuals are unavailable and Schmeeckle previously served as Plaintiffs' PMQ in the BOBS Action. Plaintiffs maintain that Schmeeckle gave more than 11 hours of substantive testimony on the noticed topics and that Barker's complaints concern subjects (allocation, reinsurance, organizational structure) that were never noticed; they further assert that allocation is, in any event, legally irrelevant because RATIC and OCTSC were jointly and severally liable in the BOBS Action. As to the Document Requests, Plaintiffs argue the motion is moot: they produced documents at the depositions, produced more pursuant to the February 10, 2026 order, and per the Hernandez Declaration confirmed there is no responsive allocation documentation and no responsive communications with the DOI. Plaintiffs request denial and \$13,800 in monetary sanctions.

Along with his reply, Barker submitted the Supplemental Declaration of Randall Manvitz. New evidence submitted with reply papers is generally disfavored and permitted only in exceptional circumstances; the Court nonetheless has discretion to consider it provided the opposing party is afforded an opportunity to respond. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538.) Here, the Marconi deposition testimony attached to the Supplemental Declaration post-dates Plaintiffs’ opposition and directly responds to Plaintiffs’ arguments regarding (1) the unavailability of more knowledgeable witnesses, (2) the legal irrelevance of allocation, and (3) the absence of responsive allocation documents. **Under these circumstances, the Court will exercise its discretion to consider the Supplemental Declaration and afford Plaintiffs an opportunity to respond at the hearing.**

In reply, Barker argues that CRC Rule 3.1345 does not apply to a motion to compel a corporate designee’s appearance, and contends that, in any event, the moving memoranda satisfy the “concise outline” alternative under CRC Rule 3.1345(b)(2). On the merits, Barker argues that Schmeeckle was Plaintiffs’ BOBS Action PMQ for RATIC only, not for OCTSC’s escrow practices, and that Plaintiffs’ opposition does not rebut his lack of knowledge on the disputed topics. Barker further points to May 19, 2026 testimony from former OCTSC president Mike Marconi, which he contends establishes that the Indemnity Agreement applies only to RATIC (defeating the joint-and-several “allocation is irrelevant” theory); that reinsurer Lloyds of London paid \$9.5 million of the \$10.5 million settlement; that knowledgeable OCTSC escrow employees (Steve Ayers and Lori Fellman) exist but were not designated; and that additional responsive documents (a 2022 Securities Purchase Agreement, RATIC Board Minutes, and accounting records of fee payments) have not been produced, narrowing the scope of the Hernandez Declaration’s no-documents representation. Barker also withdrew his request for issue/evidentiary sanctions, leaving only the request for monetary sanctions.

Analysis

1. Legal Standard

A party may notice the deposition of an organization that is a party by describing with reasonable particularity the matters on which examination is requested; the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent. (CCP § 2025.230.) The burden is on the entity, not the examiner, to produce the right witnesses, and if the particular officer or employee designated lacks personal knowledge of all the information sought, he or she is supposed to find out from those who do. (*Maldonado v. Sup. Ct.* (2002) 94 Cal.App.4th 1390, 1395–96.)

When document production is at issue, the witness or someone in authority is expected to make an inquiry of everyone who might be holding

responsive documents or everyone who knows where such documents might be held. (*Id.* at 1397.) The entity is not, however, required to produce former employees just because they are far more knowledgeable about the litigation than anyone currently employed by the company; the duty is limited to producing the most knowledgeable person currently in its employ and making sure that that person has access to information and documents reasonably available within the corporation. (*Id.* at 1398; see also *LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 951–52.)

A motion to compel the appearance and testimony of an entity's designee, and the production of documents described in the deposition notice, lies under CCP § 2025.450(a). (CCP § 2025.450(a).) The motion must set forth specific facts showing good cause and be accompanied by a meet-and-confer declaration. (CCP § 2025.450(b).) By contrast, a motion to compel further answers from a deponent who has appeared and testified, or further production from a deponent who has produced something, lies under section 2025.480 and must be accompanied by a separate statement under CRC Rule 3.1345. If a section 2025.450 motion is granted, the court shall impose monetary sanctions against the unsuccessful opposing party unless that party acted with substantial justification or sanctions would otherwise be unjust. (CCP § 2025.450(g)(1).) Section 2025.480(j) provides parallel mandatory monetary sanctions. (CCP § 2025.480(j).)

2. On the Merits

A. Procedural Objections

As an initial matter, Plaintiffs argue that both motions seek to compel further deposition testimony under CCP § 2025.480, which requires a separate statement complying with CRC Rule 3.1345(a)(4), and that the absence of such a statement is an independent ground for denial.

Barker responds that CRC Rule 3.1345 does not apply to a motion to compel a section 2025.230 corporate designee, because rule 3.1345(a)(4) addresses motions to compel “answers at deposition”—*i.e.*, responses to particular questions over which objections were raised—whereas the present motions seek to compel the appearance of a qualified witness under section 2025.450(a). Barker further argues that, in any event, rule 3.1345(b)(2) permits the Court to allow a “concise outline” in lieu of a separate statement, and the moving memoranda satisfy that alternative by identifying each disputed deposition topic and the witness's express lack of information. As to Document Requests, Barker contends a separate statement was provided. CCP § 2025.450 governs motions to compel a designee's appearance and document production listed in the deposition notice; the statute requires only specific facts showing good cause and a meet-and-confer declaration. (CCP §§ 2025.450(a), (b).) Section 2025.480 governs motions to compel further answers or production after a deponent has appeared, and CRC Rule 3.1345 requires a separate statement for such motions. The Court's February 10, 2026 ruling on

Barker's earlier motion to compel OCTSC's PMQ expressly directed: "To the extent Barker seeks to compel further testimony from OCTSC's PMQ, Barker must meet and confer and, if necessary, file an appropriate motion seeking to do so. (C.C.P., § 2025.480; Cal. Rules of Court, rule 3.1345.)" (Manvitz Decl. ¶ 12, Ex. 6.)

The current motions are most accurately characterized as motions to compel further PMQ testimony. **Schmeeckle** appeared as PMQ for both entities and was deposed at length (Manvitz Decl. ¶¶ 14, 18), and the Court has previously directed Barker that the appropriate vehicle for such relief is section 2025.480, with rule 3.1345 expressly cited (Manvitz Decl. ¶ 12, Ex. 6). Barker's recharacterization of the present motions as section 2025.450 motions does not avoid the rule the Court previously identified. That said, Barker did file a separate statement addressing Document Requests, and the deficiency is limited to the disputed deposition topics. The moving memoranda nevertheless set out those topics in sufficient detail for Plaintiffs to oppose on the merits, and Plaintiffs identify no concrete prejudice. Accordingly, Plaintiffs' procedural objections do not warrant denial of the motions, although counsel is admonished to comply with rule 3.1345 in any future motion under section 2025.480.

B. Qualified Designee Under CCP § 2025.230

Barker contends Schmeeckle was not the most qualified designee and was unprepared on the disputed topics. As to OCTSC, Barker seeks a further PMQ on Topics 1–3, 5, 6, 8, 9, 12, 16, and 17; as to RATIC, on Topics 12, 16, and 17. Barker makes three arguments. First, Schmeeckle had no experience with OCTSC's escrow process and admitted he was not knowledgeable about OCTSC's escrow policies and practices (Topics 1–3, 5, 6); his prior PMQ role in the BOBS Action was for RATIC only, not for OCTSC's escrow practices, and his more recent OCTSC underwriting work is distinct from escrow. (Manvitz Decl. ¶ 10, Ex. 5 at 32:5–33:5, 36:20–37:1.) Second, Schmeeckle had no meaningful knowledge of the basis for Plaintiffs' indemnity claims (Topic 12), the decision to enter the \$10.5 million settlement (Topic 16), or each Plaintiff's damages and the allocation of payment (Topic 17) and admitted he spent only 15 minutes preparing with counsel on settlement and damages topics. (Fink Decl. ¶ 9, Ex. C at 152:24–153:4.) Third, Plaintiffs' own PMQ and in-house counsel identified Mike Marconi, John Marconi, Rich Macaluso, and Bill Burding as the executives with knowledge of the disputed topics, yet Plaintiffs declined to designate them and moved to quash Marconi's and Macaluso's depositions. After the Court denied the motion to quash, Marconi testified on May 19, 2026 that the Indemnity Agreement applies only to RATIC (not OCTSC); reinsurer Lloyds of London (not Plaintiffs) paid \$9.5 million of the \$10.5 million settlement; and current OCTSC escrow employees Steve Ayers and Lori Fellman have 37 combined years of OCTSC escrow experience but were not designated. (Manvitz Suppl. Decl. ¶ 3, Ex. 1 at 87:2–4, 88:8–13, 90:11–15, 136:16–138:2, 159:1–25.)

Plaintiffs respond that section 2025.230 requires only the “most qualified” witness, not the most knowledgeable, and that Schmeeckle was the appropriate designee given that more knowledgeable individuals are unavailable. (Fink Decl. ¶ 3.) Plaintiffs maintain Schmeeckle gave more than 11 hours of substantive testimony, including on the BOBS loan transaction, the reasons for entering the Settlement Agreement, and the \$10.5 million in damages; Schmeeckle previously served as Plaintiffs’ PMQ in the BOBS Action and currently has OCTSC underwriting experience. Plaintiffs contend Barker’s complaints concern subjects (allocation, reinsurance, organizational structure) never noticed in the deposition notices; argue allocation is legally irrelevant because RATIC and OCTSC were jointly liable in the BOBS Action; and assert Barker waived the preparedness objection by declining counsel’s offer to suspend the OCTSC deposition.

CCP § 2025.230 places the burden on the entity, not the examiner, to produce the right witnesses, and where the designee lacks personal knowledge, “he or she is supposed to find out from those who do.” (*Maldonado, supra*, 94 Cal.App.4th at 1395–96.) The duty is to “produc[e] the most knowledgeable person currently in its employ and mak[e] sure that that person has access to information and documents reasonably available within the corporation.” (*Id.* at 1398; *see also LAOSD Asbestos Cases, supra*, 87 Cal.App.5th at 951–952.)

Topics 1, 2, 3, 5, and 6 (OCTSC’s Escrow — OCTSC motion only).

Schmeeckle stated that he was not involved in escrow at OCTSC and was not familiar with OCTSC’s escrow policies or practices. (Manvitz Decl. ¶ 10, Ex. 5 at 32:5–33:5.) His prior PMQ role in the BOBS Action was for RATIC. Plaintiffs’ position that more knowledgeable individuals are unavailable (Fink Decl. ¶ 3) is in tension with Marconi’s testimony identifying two current OCTSC escrow employees, Steve Ayers and Lori Fellman, with a combined 37 years of experience in OCTSC’s escrow department. (Manvitz Suppl. Decl. ¶ 3, Ex. 1 at 136:16–138:2.) On this record, Plaintiffs have not shown that Schmeeckle is “the most knowledgeable person currently in [their] employ” on these topics. (*Maldonado, supra*, 94 Cal.App.4th at 1398.) Thus, further PMQ testimony is warranted on Topics 1, 2, 3, 5, and 6 for OCTSC.

Topics 12, 16, and 17 (Settlement and Damages — both motions).

These topics bear directly on Plaintiffs’ affirmative indemnity claim. The cited deposition excerpts reflect that Schmeeckle was unable to provide substantive testimony on the basis for Plaintiffs’ indemnity claims (Topic 12), the decision to enter the \$10.5 million settlement (Topic 16), or each Plaintiff’s damages and allocation (Topic 17). (Manvitz Decl. ¶ 9, Ex. 4 at 32:11–33:4, 47:16–19, 81:10–22; ¶ 10, Ex. 5 at 89:22–24, 89:25–90:17, 207:7–14.) Preparation on settlement and damages totaled approximately 15 minutes. (Fink Decl. ¶ 9, Ex. C at 152:24–153:4.) Plaintiffs do not describe any inquiry undertaken to prepare Schmeeckle on these topics through current personnel—the inquiry *Maldonado* contemplates. (*Maldonado, supra*, 94 Cal.App.4th at 1395–96 [“the burden is on the entity, not the examiner, to produce the right witnesses”].) Plaintiffs’

contention that allocation is irrelevant in light of joint-and-several liability presents a relevance argument the Court has already addressed at the discovery stage. The February 10, 2026 ruling held that “this information is relevant to why RATIC would pay the entire \$10.5 million settlement which it now seeks from Barker when OCTSC is liable for the whole amount as it is not covered by the indemnity agreement and . . . how they allocated the payment between a covered party (RATIC) and an uncovered party (OCTSC).” (Manvitz Decl. ¶ 12, Exs. 6–7.) Topic 17 (each Plaintiff’s damages) was noticed and is relevant. (Manvitz Decl. ¶ 13, Exs. 8–9.) Marconi’s May 19, 2026 testimony indicates that knowledgeable current personnel exist and bears on the scope of the Indemnity Agreement and the identity of the entity that sustained loss— issues material to the indemnity claim as framed by the Court’s prior order. (Manvitz Suppl. Decl. ¶ 3, Ex. 1 at 87:2–4, 88:8–13, 90:11–15.) Plaintiffs’ waiver argument — that Barker forfeited the preparedness objection by proceeding with the RATIC deposition after counsel offered to suspend — does not answer the section 2025.230 obligation, which falls on the producing party before the deposition. (*Maldonado, supra*, 94 Cal.App.4th at 1398.) Thus, further PMQ testimony is warranted on Topics 12, 16, and 17 for both motions.

Topics 8 and 9 (OCTSC motion only). The OCTSC motion’s relief section identifies Topics 8 and 9, but the moving memorandum and reply do not separately analyze either topic or identify deposition testimony showing Schmeackle’s lack of preparation as to them. The Court does not grant relief on topics for which Barker has not made a particularized showing of deficiency. Thus, **the OCTSC motion as to Topics 8 and 9 is denied without prejudice.**

Subjects not noticed. Reinsurance is not a noticed topic (Manvitz Decl. ¶ 13, Exs. 8–9), and Schmeackle’s unfamiliarity with reinsurance is not, standing alone, a basis for further PMQ testimony. To the extent reinsurance information bears on the allocation of the \$10.5 million settlement, it should be reachable through Topic 17 (damages).

Based on the foregoing, the motions are **granted** (OCTSC motion only) as to Topics 1, 2, 3, 5, and 6; **denied without prejudice** as to Topics 8 and 9 (OCTSC motion only); and **granted** as to Topics 12, 16, and 17 (both motions).

C. Document Requests

Barker contends Plaintiffs have not produced all non-privileged documents responsive to PMQ Document Requests Nos. 21 and 22 (allocation of the settlement payment) and Nos. 24 and 26 (DOI communications regarding the BOBS settlement and the inter-entity Administrative Services Agreement), and that the Court already ordered production of the same subject matter in its February 10, 2026 order. As to No. 26, Barker argues relevance to the alter-ego allegations based on overlap of RATIC and OCTSC personnel and the California Insurance Commissioner’s analysis of alter-ego issues in the context of an ongoing examination of Plaintiffs. In reply, Barker points to Marconi’s May 19, 2026 testimony identifying additional responsive documents that Barker

contends have not been produced: (1) a 2022 Securities Purchase Agreement listing the BOBS Action and allocating liability to the seller (Manvitz Suppl. Decl. ¶ 3, Ex. 1 at 27:10–21, 49:7–14); (2) RATIC Board Minutes addressing allocation of liability for the BOBS Action (*id.* at 61:23–62:9); (3) accounting records reflecting payment of attorneys’ fees claimed as damages (*id.* at 122:10–123:17); and (4) documents reflecting each Plaintiff’s payment toward the settlement amount claimed as damages (*id.* at 135:5–9).

Plaintiffs respond that the Document Requests are moot in light of the production at the deposition, the production after the Court’s February 10, 2026 ruling, and the Hernandez Declaration’s representations that “[t]here is no documentation of any agreement between RATIC and [OCTSC] regarding the allocation between them of the payment of settlement related to the BOBS [Action],” that responsive communications addressing allocation have been produced, and that no responsive communications exist between Plaintiffs and the DOI regarding either the BOBS settlement or the Administrative Services Agreement. (Hernandez Decl. ¶¶ 2–4.)

A motion to compel further production from a deponent who has produced some documents lies under CCP § 2025.480. (CCP § 2025.480(a), (i).) The producing entity must make an inquiry of everyone who might be holding responsive documents or everyone who knows where such documents might be held. (*Maldonado, supra*, 94 Cal.App.4th at 1397.) On February 10, 2026, the Court granted Barker’s motion to compel further responses and production as to RFP Nos. 70–88—categories addressing reinsurance, underwriting, settlement negotiations, communications regarding alleged damages, and RATIC’s analysis of potential liability and loss reserves — and ordered Plaintiffs to provide further verified responses, production, and a privilege log within 30 days.

Document Requests Nos. 21 and 22 (allocation of the settlement payment). These requests overlap substantially in subject matter with the RFP categories the Court ordered produced in its February 10, 2026 order—particularly Nos. 81–87 (settlement negotiations, communications regarding alleged damages, RATIC’s analysis of potential liability and loss reserves) and Nos. 76–78 and 80 (reinsurance and co-insurer agreements). To the extent Plaintiffs have already complied with that order, the present motion is moot as to documents produced under it. To the extent compliance remains incomplete, the appropriate remedy is enforcement of the prior order rather than duplicative relief here.

That said, Barker has identified, through Marconi’s May 19, 2026 testimony, four discrete categories of potentially responsive documents that the Hernandez Declaration does not address: (1) a 2022 Securities Purchase Agreement allocating BOBS liability; (2) RATIC Board Minutes addressing the BOBS settlement; (3) accounting records reflecting which Plaintiff paid attorneys’ fees claimed as damages; and (4) documents reflecting each Plaintiff’s payment toward the settlement. These categories fall within PMQ

Document Request Nos. 21 and 22. While the Hernandez Declaration addresses the absence of documentation of any agreement between RATIC and OCTSC regarding allocation, it does not speak to the four categories identified above. (See Hernandez Decl. ¶ 2.) *Maldonado* requires Plaintiffs to inquire of everyone who might be holding responsive documents. (*Maldonado*, *supra*, 94 Cal.App.4th at 1397.) Thus, Plaintiffs is ordered to produce all non-privileged documents responsive to Nos. 21 and 22 in those four categories, with a privilege log for any withheld documents.

Document Requests Nos. 24 and 26 (DOI communications). As to No. 24 (DOI communications regarding the BOBS settlement), the subject matter overlaps substantially with the RFP categories the Court ordered produced on February 10, 2026, and the Hernandez Declaration represents that no responsive communications with the DOI exist regarding the BOBS settlement. (Hernandez Decl. ¶ 3.) As to No. 26 (DOI communications regarding the inter-entity Administrative Services Agreement), the Hernandez Declaration likewise represents that no such communications exist. (Hernandez Decl. ¶ 4.) Although Barker has established the relevance of No. 26 to the alter-ego allegations, the producing party's verified representation that no responsive documents exist resolves the request. On this record, the motions as to Nos. 24 and 26 are moot. Should it later appear that responsive documents do exist, Barker may seek further relief at that time.

Based on the foregoing, the motions as to Document Request Nos. 21 and 22 are **granted in part**, limited to the four categories identified in Marconi's May 19, 2026 testimony, with a privilege log. The motions as to Nos. 24 and 26 are **denied as moot**.

D. Sanctions

Barker seeks \$39,700 in monetary sanctions per motion, for a total of \$79,400, under CCP §§ 2023.010, 2023.030, 2025.450(g) and 2025.480(j). Barker's notices of motion also sought evidentiary sanctions against each Plaintiff. In reply, Barker withdrew the request for evidentiary sanctions in response to Plaintiffs' objection that such a request requires a separate statement. Only the monetary sanctions requests therefore remain at issue. Plaintiffs request denial of the motions and themselves seek \$13,800 in monetary sanctions under section 2025.480(j).

Because the present motions are properly characterized as motions to compel further deposition testimony and production under section 2025.480, the operative sanctions provision is section 2025.480(j), which provides that "the court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless [the court] finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP § 2025.480(j).)

Because the motions are granted in substantial part, the mandatory sanctions provision of section 2025.480(j) runs against Plaintiffs. While sanctions are warranted, the amount Barker requests is excessive. Barker's withdrawal of the evidentiary sanctions request further reduces the fees reasonably attributable to the meritorious portions of the motions. A reduced monetary award against Plaintiffs is therefore appropriate.

Barker's \$39,700 figure reflects 76+ hours of attorney time at hourly rates ranging from \$350 to \$925. (Manvitz Decl. ¶¶ 26–29.) The hours include preparing the moving papers (12+); reviewing the opposition, drafting the reply, and appearing at the hearing (6); meet and confer efforts (2+); attending the February 10, 2026 RFP hearing (5+); serving and meeting and conferring on non-party reinsurance subpoenas (6+); preparing for and attending the OCTSC PMQ deposition (16+); and preparing for and attending the RATIC PMQ deposition (15+). (*Id.* at ¶ 26(a)–(f).) The same \$39,700 figure and same time entries are submitted in both the OCTSC and RATIC motions. (Compare Manvitz Decl. ¶¶ 26–29 [OCTSC] with Manvitz Decl. ¶¶ 26–29 [RATIC].) Thus, awarding the full amount in each motion would result in double recovery for substantially overlapping work. Moreover, several time entries appear to fall outside the scope of recoverable motion sanctions under CCP § 2025.480(j), which authorizes only fees incurred in making (or opposing) the motion. Thus, only the entries directly tied to making the motions are properly recoverable, and even those are subject to further reduction for the partial denial as to Topics 8 and 9, the partial mootness of the Document Requests in light of the February 10, 2026 order, and the withdrawal of the evidentiary sanctions request.

The Court disallows the following: attending the February 10, 2026 RFP hearing (5+); serving and meeting and conferring on non-party reinsurance subpoenas (6+); preparing for and attending the OCTSC PMQ deposition (16+); and preparing for and attending the RATIC PMQ deposition (15+). (*Id.* at ¶ 26(a)–(f).) This results in a reduction in time from 76 hours to 34 hours at a rate of \$600 per hour resulting in a total amount of \$20,400 which is divided in half resulting in a **total sanction of \$10,200 payable within 30 days of this order.**

Plaintiffs' cross-request for \$13,800 is denied.

Summary:

- **OCTSC Motion: GRANTED in part.** OCTSC shall produce a properly prepared PMQ on Topics 1, 2, 3, 5, 6, 12, 16, and 17 within thirty (30) days of this Order. As to Topics 8 and 9, the motion is **DENIED without prejudice** for failure to make a particularized showing. Plaintiffs shall produce all non-privileged documents responsive to PMQ Document Requests Nos. 21 and 22, including the 2022 Securities Purchase Agreement, RATIC Board Minutes addressing the BOBS settlement, accounting records reflecting attorneys' fees paid by each Plaintiff, and

documents showing each Plaintiff's payment toward the settlement, with a privilege log for any withheld documents, within thirty (30) days. As to PMQ Document Request Nos. 24 and 26, the motion is **DENIED as MOOT**, without prejudice to renewal if responsive documents are later identified. To the extent the present motion seeks documents already covered by the Court's February 10, 2026 order on Barker's third set of RFPs Nos. 70–88, the motion is **MOOT** as to documents already produced under that order.

- **RATIC Motion**: **GRANTED in part**. RATIC shall produce a properly prepared PMQ on Topics 12, 16, and 17 within thirty (30) days. Plaintiffs shall produce all non-privileged documents responsive to PMQ Document Requests Nos. 21 and 22 within thirty (30) days, with a privilege log for any withheld documents, on the same terms as the OCTSC Motion. As to PMQ Document Request Nos. 24 and 26, the motion is **DENIED as MOOT**, without prejudice to renewal if responsive documents are later identified. To the extent the motion seeks documents already covered by the Court's February 10, 2026 order on Barker's third set of RFPs Nos. 70–88, the motion is **MOOT** as to documents already produced under that order.
- **Sanctions**: Barker's request for monetary sanctions is **GRANTED** in the reduced amount of \$10,200 for both motions combined, payable by Plaintiffs and their counsel of record, jointly and severally, within thirty (30) days. Barker's request for evidentiary sanctions is noted **WITHDRAWN** and requires no ruling. Plaintiffs' cross-request for \$13,800 in monetary sanctions is **DENIED**.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2304826	ANDERSON VS LIL' WAVE FINANCIAL, INC.	MOTION TO SET ASIDE JUDGEMENT AND/ OR VACATE PURPORTED SETTLEMENT

Tentative Ruling:

Plaintiff brings this motion to set aside the settlement agreement of the parties claiming that she did not sign the “amended” agreement. However, this assertion is contradicted by Exhibit A to Plaintiff's motion showing that she in fact signed the settlement agreement and mutual release on 11/8/2025.

Plaintiff alleges that there was an amended agreement that introduced new terms. However, Plaintiff presents no evidence of a purported amended agreement.